

Online Complaint Form



COMPLAINT ABOUT A CALIFORNIA JUDGE, COURT COMMISSIONER OR REFEREE

Confidential under California Constitution Article VI, Section 18, and Commission Rule 102

For instructions on filling out and submitting this form, please visit the commission's [Online Complaint Instructions webpage](#).

Date Submitted

8/6/2024 11:17 PM

Entry Number

8,204

* Indicates a required field

Your information

Complainant 1

Your name

Kostiantyn Mars

Your pronouns (e.g., he/him; she/her; they/them)

Your email

constantine.mars@gmail.com

Your telephone number

(408) 518-0088

Your address

211 Hope St 391751, Mountain View, California 94041

Judge and conduct

Judge 1

Name of judge

Beth McGowen

Or Name of court commissioner or referee

Court Level

Superior Court

Court of Appeal District

County

Santa Clara

Type of court case

Family Law

Case name

Dissolution of Family Mars

Case number

22FL003144

Your relationship to the case

Litigant/Family/Friend

Date or dates conduct occurred

02/20/2024, 03/11/2024, 03/12/2024, 06/14/2024, 06/20/2024

Please specify what action or behavior of the judge, court commissioner or referee is the basis of your complaint. Provide relevant dates and the names of others present. (Attach additional pages if necessary.)*

Complaint

[Please see full Letter with all evidence in PDF: https://drive.google.com/file/d/19zHOxv0drW-4tBKHMNoxQTEBOFM1UBSw/view?usp=drive_link]

Dear Commission on Judicial Performance and Chief Justice Patricia Guerrero,

I respectfully ask you for emergency help to NULLIFY ALL ORDERS OF THREE DISQUALIFIED CROOKS ("JUDICIAL OFFICERS") STEPHEN LOWNEY, ANDREA FLINT, JAMES TOWERY OBTAINED BY FRAUD ON COURT, RETROACTIVELY BACK TO 09/13/2022, VACATE INVALID RESTRAINING ORDER 06/17/2024, REMOVE ME FROM VEXATIOUS LITIGANT PREFILING LIST (INVALID ORDER 03/11/2024), VACATE OBTAINED BY FRAUD STIPULATIONS 01/26/2023 AND 02/08/2023, AND TO TRANSFER THE CASE 22FL003144 TO SAN MATEO COUNTY COURT.

I respectfully ask you for emergency help with these matters, because Presiding Judge Beth McGowen confirmed that she is participant of organized criminal syndicate, acting under color of law in Santa Clara County Superior Court, refused to disqualify bribed crook Stephen Lowney and transfer case to another department, allowed disqualified crook Stephen Lowney to stay on the case 22FL003144 and severely retaliate to me by ordering my arrest, Vexatious Litigant order, permanent restraining order against my son, and deny request to nullify all orders obtained by fraud on court of THREE DISQUALIFIED CROOKS LOWNEY, FLINT AND TOWERY - therefore Beth McGowen completely destroyed credibility of Santa Clara County Superior Court, and made it impossible to continue case 22FL003144 in this court.

I respectfully ask you for emergency help to protect my son, Max Mars, from "court ordered" international child abduction outside of the United States to Ukraine in times of war, domestic violence and severe harm caused by repetitive fraud on court committed by three disqualified crooks ("judicial officers") acting as organized criminal syndicate under color of law in the nit nest of deeply rotten Santa Clara County Superior Court in custody case number 22FL003144, with the support of Presiding Judge Beth McGowen.

The court's intentionally harmful handling of this case, under the supervision and endorsement of organized crime by Presiding Judge Beth McGowen, has exposed an extremely troubling pattern of uncontrollable outburst of organized crime, repetitive fraud on court, and shameless severe judicial misconduct - supported and endorsed by Presiding Judge Beth McGowen.

As I unfortunately discovered during 2 years of investigation of organized crime under color of law in Santa Clara County Superior Court, during fighting for freedom of my kidnapped and unlawfully detained son Max Mars, Presiding Judge Beth McGowen not only refused to officially disqualify bribed crook

Stephen Lowney, but was systematically concealing disqualifications of THREE disqualified judicial officers during past 2 years, and even worse - allowed disqualified crooks to severely retaliate to me for their disqualification.

As PAJAR Team confirmed (also previously), notices of disqualification of judicial officers Stephen Lowney (02/20/2024, 03/11/2024, 03/12/2024, 06/14/2024, 06/20/2024) and Andrea Flint (11/13/2023, 11/30/2024) were never sent to Judicial Council, in violation of CCP 170.4.

Andrea Flint was never officially disqualified - Beth McGowen made it look like she was "rotated" to another department in December 2023.

Her disqualified predecessor James Towery was also never disqualified - Presiding Judge made this look like he was "retired" at the end of 2022.

Stephen Lowney was served FIVE statements of disqualification since 02/20/2024 - and undeniable conflict of interest was so obvious and undeniable, especially after 03/11/2024 he ordered retaliatory Vexatious Litigant order against me to block my right of self-representation, ordered my arrest on 06/17/2024, ordered permanent restraining order against my son 06/17/2024, denied my requests to Change of Venue 03/21/2024, Denied Statement of Decision, Court Reporter, Video and Audio Recording of Proceedings, Media Coverage, Custody Review 02/07/2024 and 06/17/2024, denied Trial on opposing DVROs 02/07/2024 and 06/17/2024, denied Final Trial to finalize divorce - FIVE times, and even Bifurcation of Divorce Status - that any proceedings until Stephen Lowney will be officially removed from case 22FL003144 doesn't make any sense.

Understanding undeniable conflict of interest of Stephen Lowney against me, I requested to reschedule hearing 06/17/2024 three months later - to allow enough time for Presiding Judge and Commission on Judicial Performance to complete investigation of outburst of crime in court, and properly remove Lowney - but Presiding Judge not only refused to help with rescheduling hearings, but even worse - she stated in her Letter 04/08/2024 that she refuses to disqualify Lowney, and refuses to transfer case 22FL003144 to another department - which means that PRESIDING JUDGE ALLOWED DISQUALIFIED CROOK LOWNEY TO SEVERE RETALIATE TO ME ON 06/17/2024 by ordering my arrest, permanent restraining order against my son, and denied request to nullify all orders of three disqualified crooks.

With that said, Lowney ordered my arrest while per CCP 170.4 he had no judicial power to rule on this case due to his ongoing disqualification started 02/20/2024, and made orders 06/17/2024 in my absence, despite I timely requested to reschedule this hearing due to undeniable conflict of interest and ongoing disqualification of Lowney. But Lowney completely ignored law - and severely retaliated. Which is impermissible.

Just a three days before massive retaliation of Lowney, on 06/14/2024 I was arrested for bringing donuts and hot chocolate to my kidnapped son Max Mars - which was motivated by DVRO, signed by disqualified judicial officer Andrea Flint on 11/28/2023, two weeks after her disqualification started 11/13/2023. Per CCP 170.4 Flint had no judicial power to sign DVRO against me due to her ongoing disqualification - but she completely ignored law, and severely retaliated to me, by signing DVRO - which, btw, was requested by schizophrenic Hanna Mars because my son was happy, smiling and hugged me when I greeted my son with birthday on 11/23/2023 - which was strictly prohibited by schizophrenic mother, who beaten my son on his birthday for hugging me, while being video recorded in moment of violence.

Ordering my arrest by disqualified crooks ("judicial officers") becomes a tradition in the deeply rotten Santa Clara County Superior Court - while Presiding Judge Beth McGowen conceals their disqualification and allows them to severely retaliate against me.

Both disqualified judicial officers Lowney and Flint were suspected of bribery due to severe repetitive

fraud on court they committed in favor of Nancy Roberts multiple times: 10/31/2022, 06/29/2023, 07/31/2023, 11/13/2023, 02/01/2024, 02/07/2024, 03/21/2024, 06/17/2024, completely ignoring safety and best interest of my child, ignoring all evidence and witness statements, and systematically were ordering me and threatening to put me in jail to force me to give up passport and all documents of my son - which clearly confirmed suspected bribery, because ALL THREE DISQUALIFIED CROOKS WERE ORDERING ME TO ABANDON MY SON, AND GIVE UP PASSPORT AND ALL DOCUMENTS OF MY SON WITHOUT HEARING CUSTODY REVIEW MATTER, AND REFUSING TO HEAR CUSTODY MATTER AT ALL (Fraud DVRO 2022 signed by Towery, Harmful orders 2023-06-29, Harmful fraud orders 2024-02-07, Recording of hearing 02/07/2024, and Transcript 2024-02-07 - detailed analysis in corresponding Statements of Disqualification).

Taking into account the uncontrollable outburst of organized crime under color of law in deeply rotten Santa Clara County Superior Court, and severe retaliation of disqualified crook Stephen Lowney, which is supported by Presiding Judge Beth McGowen, I respectfully request your help to get granted Quo Warranto and Change of Venue - and get this case transferred to San Mateo County Court.

I also respectfully ask you for emergency help to:

1. Officially disqualify and nullify all orders of disqualified bribed crook ("judicial officer") Stephen Lowney from case 22FL003144, terminate him from Superior Court with dishonors and ban him from any judicial or political job indefinitely. I respectfully attach for your attention 5 (FIVE) Statements of Disqualification against Lowney starting February 20, 2024, and 40 (FORTY) Judicial Misconduct Complaints to Commission on Judicial Performance of California since his massive act of fraud on February 7, 2024.

2. Nullify all orders of the three disqualified crooks Stephen Lowney, Andrea Flint and James Towery retroactively back to 09/13/2022 - and provide official confirmation of nullification of these orders - to prevent enforcement of this harmful fraud on court.

3. Transfer case 22FL003144 to San Mateo County Superior Court to allow this matter to be heard by an impartial judge, who is not involved in an organized criminal syndicate of completely rotten nit nest of Santa Clara County Superior Court, supervised, supported and endorsed by Presiding Judge Beth McGowen. Quo Warranto and Change of Venue attached

4. Nullify harmful retaliatory arrest bench warrant against me, ordered by disqualified crook Lowney on June 17, 2024, together with the permanent restraining order against my son, and denial to nullify all orders obtained by repetitive fraud on court of three disqualified crooks Lowney, Flint and Towery - despite he had no judicial power to act in this proceeding due to his ongoing disqualification since February 20, 2024

5. Nullify harmful retaliatory Vexatious Litigant prefilling order and remove me from Vexatious Litigants list, ordered by disqualified crook Lowney on March 11, 2024 in retaliation to my statements of his disqualification filed on February 20, 2024 and March 11, 2024, when he has no judicial power to rule on this case due to his ongoing disqualification started on February 20, 2024

6. Dismiss all unlawful restraining orders ordered on 06/17/2024 and 11/28/2023 by disqualified crooks Lowney and Flint, who had no judicial power to rule on this case on those dates due to their ongoing disqualification (Lowney - since February 20, 2024, Flint - since November 13, 2023).

7. Vacate harmful fraud stipulations obtained by fraud on February 8, 2023 and January 26, 2023 by shameless crooks Nancy Roberts and Steven Dinneen, used to enforce kidnapping and parental alienation of my son Max, unlawfully steal money from me through fraud with DCSS, and force me to abandon my son and give up passport and all documents of my son to his schizophrenic mother, who kidnapped Max and threatened to "bury our son in Ukrainian soil, so you will never see him again"

8. Nullify harmful financial fraud orders November 13, 2023, July 31, 2023, and February 1, 2024 - obtained by fraud on court, falsification of bank statements by Nancy Roberts (video recorded during hearing on November 13, 2023), and fraud on court committed by disqualified crooks Lowney and Flint.

I implore you to intervene to stop these injustices and protect my son from further harm.

I ask you for help to transfer this case to San Mateo County Court to allow this case to be heard by an impartial judge, not involved in the organized criminal syndicate of Santa Clara County Superior Court.

[Please see full Letter with all evidence in PDF: https://drive.google.com/file/d/19zHOxv0drW-4tBKHMNxQTEBOFM1UBSw/view?usp=drive_link]

Sincerely,
Constantine Mars,
(408) 518 0088
constantine.mars@gmail.com

File Upload

Letter to Commission On Judicial Performance 2024-08-06 (compressed).pdf

Letter from Presiding Judge.pdf

2024-02-20 Cover Letter to Presiding Judge.pdf

2024-02-20 Disqualification against Lowney.pdf

2024-03-11 Disqualification against Lowney Amended (printed).pdf

2024-03-12 Disqualification against Lowney 2nd Amended.pdf

2024-06-14 Disqualification against Lowney 3rd Amended.pdf

2024-06-20 Disqualification against Lowney 4th Amended.pdf

2023-11-13 Disqualification against Flint.pdf

2023-11-30 Disqualification against Flint Amended.pdf